

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

9. DANE SIMS V. LISA SMITH

25FL0666

On July 18, 2025, Petitioner filed a Request for Order (RFO) requesting the court make child custody and parenting plan orders.

Parties appeared for the hearing on October 9, 2025. The court found Petitioner to be the presumed parent of the minor and referred the parties to Child Custody Recommending Counseling (CCRC). A review hearing was set for December 4, 2025.

At the December 4th hearing the parties agreed to adopt the CCRC recommendations with some modifications. They also agreed to set a review hearing on the issue of parenting time and a holiday schedule which was set to be heard on the present date.

Petitioner's supplemental declaration was filed and served on August 19, 2026.

Respondent filed a declaration on August 25, 2026, however there is no Proof of Service for this document and it was late filed as it was filed later than 10 days prior to the hearing. For these reasons, the court has not read or considered this document.

Petitioner is requesting a 2-2-3 parenting schedule. He also requests a holiday schedule as specified in his supplemental declaration and orders regarding travelling with the minor.

After reviewing the filings as outlined above, the court does find it to be in the minor's best interests to increase Petitioner's parenting time to a 2-2-3 schedule. Commencing on Monday September 7th, the parties are to begin adhering to a 2-2-3 schedule as follows: Week one: Petitioner to have Monday at 2:00pm through Wednesday at 2:00pm; Respondent to have Wednesday at 2:00pm through Friday at 2:00pm; and Petitioner to have Friday at 2:00pm through Monday at 2:00pm. Week two: Respondent to have Monday at 2:00pm through Wednesday at 2:00pm; Petitioner to have Wednesday at 2:00pm through Friday at 2:00pm; and Respondent to have Friday at 2:00pm through Monday at 2:00pm.

In addition to the above, the court is adopting the holiday schedule set forth in Petitioner's August 19th supplemental declaration.

If either parent intends to travel with the minor, the traveling parent shall provide the non-travelling parent at least two weeks' advance notice of the vacation days. Notice shall

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include the date of departure, date of return, location of travel, lodging contact information, and travel information including flight numbers and times.

All prior orders not in conflict with this order remain in full force and effect. This includes the court's prior orders regarding legal custody.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT DOES FIND IT TO BE IN THE MINOR'S BEST INTERESTS TO INCREASE PETITIONER'S PARENTING TIME TO A 2-2-3 SCHEDULE. COMMENCING ON MONDAY SEPTEMBER 7TH, THE PARTIES ARE TO BEGIN ADHERING TO A 2-2-3 SCHEDULE AS FOLLOWS: WEEK ONE: PETITIONER TO HAVE MONDAY AT 2:00PM THROUGH WEDNESDAY AT 2:00PM; RESPONDENT TO HAVE WEDNESDAY AT 2:00PM THROUGH FRIDAY AT 2:00PM; AND PETITIONER TO HAVE FRIDAY AT 2:00PM THROUGH MONDAY AT 2:00PM. WEEK TWO: RESPONDENT TO HAVE MONDAY AT 2:00PM THROUGH WEDNESDAY AT 2:00PM; PETITIONER TO HAVE WEDNESDAY AT 2:00PM THROUGH FRIDAY AT 2:00PM; AND RESPONDENT TO HAVE FRIDAY AT 2:00PM THROUGH MONDAY AT 2:00PM.

IN ADDITION TO THE ABOVE, THE COURT IS ADOPTING THE HOLIDAY SCHEDULE SET FORTH IN PETITIONER'S AUGUST 19TH SUPPLEMENTAL DECLARATION.

IF EITHER PARENT INTENDS TO TRAVEL WITH THE MINOR, THE TRAVELING PARENT SHALL PROVIDE THE NON-TRAVELLING PARENT AT LEAST TWO WEEKS' ADVANCE NOTICE OF THE VACATION DAYS. NOTICE SHALL INCLUDE THE DATE OF DEPARTURE, DATE OF RETURN, LOCATION OF TRAVEL, LODGING CONTACT INFORMATION, AND TRAVEL INFORMATION INCLUDING FLIGHT NUMBERS AND TIMES.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. THIS INCLUDES THE COURT'S PRIOR ORDERS REGARDING LEGAL CUSTODY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07